

		Defendant shall serve notice of this Order.
6.	2024-1383091 Chambers vs. Johnson	Defendant Dehghanmanesh seeks an order allowing Stephen B. Beranek, Esq. and Michael Gardineer, Esq. to appear as counsel <i>pro hac vice</i> for him in this action. Both Counsel have complied with CRC Rule 9.40. Accordingly, Counsels' unopposed application is granted. Defendant Dehghanmanesh shall give notice.
7.	2023-1330417 Burch vs. San Juan Capistrano Unified School District	Demurrer to Third Amended Petition The demurrer by Respondent Capistrano Unified School District, erroneously sued as San Juan Capistrano Unified School District ("District") to the Third Amended Verified Petition for Writ of Mandate ("TAP") filed by petitioners Daniel Burch ("Burch") and Quantum Education Dynamics ("Quantum") (collectively, "Petitioners") is overruled in part and sustained in part with 15 days leave to amend. District's requests for the Court to take judicial notice of the directives issued by CalSTRS in 2018, 2019, and 2022 are granted. (Evid. Code § 452, subd. (b); TAP, ¶¶ 12-13.) District's request for the Court to take judicial notice of the directive issued by CalSTRS in 2023 is denied. This directive is directed at fiscal year 2022-23 and 2023-24, after the time period at issue in the TAP and do not appear relevant to the allegations in the TAP. (<i>Bell v. Greg Agee Construction, Inc.</i> (2004) 125 Cal.App.4th 453, 459, fn. 2.) District's unopposed request for the Court to take judicial notice of District's Board policy number 3300(b) should be granted. (Evid. Code, § 452, subd. (b); <i>Warmington Old Town Associates, L.P. v. Tustin Unified School Dist.</i> (2002) 101 Cal.App.4th 840, 858, fn. 3.) <u>First cause of action for petition for writ of mandate</u> Failure to exhaust administrative remedies "A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer." (Code Civ. Proc., § 430.41, subd. (b).)

District did not previously raise this ground in District's demurrer to Petitioners' Second Amended Petition. Accordingly, the Court declines to consider this ground and overrules the demurrer.

Misjoinder

District contends CalSTRS is an indispensable party because CalSTRS made the ultimate decision to obtain reimbursement from Burch.

The Court previously noted Districted contended for the first time in District's reply in support of District's demurrer to the Second Amended Petition that CalSTRS was an indispensable party and declined to consider this ground.

The Court notes District did not provide proper notice of its demurrer on the ground of defect of the parties. (Code Civ. Proc., § 430.10, subd. (d).) However, Petitioners did not object to notice of this ground and instead only opposed the demurrer on the ground that District did not raise this ground in a prior demurrer.

A defendant may demur to the complaint on the ground that there is a defect or misjoinder of parties. (Code Civ. Proc., § 430.10(d).) CCP section 389 provides, in pertinent part, as follows:

(a) A person who is subject to service of process and whose joinder will not deprive the court of jurisdiction over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (i) as a practical matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest. If he has not been so joined, the court shall order that he be made a party.

(b) If a person as described in paragraph (1) or (2) of subdivision (a) cannot be made a party, the court shall determine whether in equity and good conscience the action should proceed among the parties before it, or should be dismissed without prejudice, the absent person being thus regarded as indispensable. The factors to be considered by the court include: (1) to what

		extent a judgment rendered in the person's absence might be prejudicial to him or those already parties; (2) the extent to which, by protective provisions in the judgment, by the shaping of relief, or other measures, the prejudice can be lessened or avoided; (3) whether a judgment rendered in the person's absence will be adequate; (4) whether the plaintiff or cross-complainant will have an adequate remedy if the action is dismissed for nonjoinder. (c) A complaint or cross-complaint shall state the names, if known to the pleader, of any persons as described in paragraph (1) or (2) of subdivision (a) who are not joined, and the reasons why they are not joined. “Indispensable parties have been identified as those who are essential for ‘a complete determination of the controversy’ (<i>First Nat. etc. Bk. v. Superior Court</i> (1942) 19 Cal.2d 409, 415, 121 P.2d 729; <i>Lushing v. Riviera Estates Assn.</i> (1961) 196 Cal.App.2d 687, 690, 16 Cal.Rptr. 763) or the ability of a court to enter ‘any effective judgment’ (<i>Writers Guild of America, West, Inc. v. Screen Gems, Inc.</i> (1969) 274 Cal.App.2d 367, 375, 79 Cal.Rptr. 208).” (<i>Kaczorowski v. Mendocino County Board of Supervisors</i> (2001) 88 Cal.App.4th 564, 568.) A “mandatory duty to order other parties brought in is shown only when the trial court finds or the record indisputably discloses that such parties are indispensable to a complete determination of the controversy.” (<i>First Nat. Trust & Sav. Bank of San Diego v. Superior Court of Los Angeles County</i> (1942) 19 Cal.2d 409, 415.) Here, the pleadings and the matters of which the Court takes judicial notice does not indisputably show that CalSTRS is an indispensable party. Although CalSTRS required Burch to reimburse earnings in excess of his retirement amount, the TAP alleges District misreported the payments made and tax reported to Quantum. (TAP, ¶ 19.) The contract attached to the TAP is between District and Quantum and does not expressly designate Burch as the individual who will provide the services. (<i>Id.</i>, Exhibit 1.) Accordingly, the demurrer is overruled. The Court notes its ruling does not contradict <i>Kaczorowski</i>’s denial of a petition for a writ on the ground that the petitioner in <i>Kaczorowski</i> failed to include an indispensable party. The record on demurrer in this case is not as fully developed as in <i>Kaczorowski</i>. The Court’s ruling on the demurrer is not a determination on the merits as to whether CalSTRS may
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	ultimately be determined to be an indispensable party after the record is more fully developed. Sufficiency of allegations As an initial matter, the Court notes Petitioners were not granted leave to amend the first cause of action. Because the parties fully briefed the demurrer on the first cause of action, the Court exercises its discretion to proceed with the demurrer on the first cause of action as amended. “To adequately state a claim for the issuance of a writ of mandate, a petitioner must allege: (1) ‘the public official or entity had a ministerial duty to perform’; and (2) ‘the petitioner had a clear and beneficial right to performance.’ (<i>HNHPC, Inc. v. Department of Cannabis Control</i> (2023) 94 Cal.App.5th 60, 69, citing <i>Physicians Committee for Responsible Medicine v. Los Angeles Unified School Dist.</i> (2019) 43 Cal.App.5th 175, 184.) In addition, “it is essential that it shall appear from the allegations of the petition that there is not a plain, speedy, and adequate remedy in the ordinary course of the law.” (<i>Ross v. O’Brien</i> (1934) 1 Cal.App.2d 496, 501, superseded by statute on other grounds.) Our 4th DCA explained in <i>HNHPC, Inc. v. Department of Cannabis Control</i>: “A ministerial act is an act that a public officer is required to perform in a prescribed manner in obedience to the mandate of legal authority and without regard to his [or her] own judgment or opinion concerning such act’s propriety or impropriety, when a given state of facts exists. Discretion ... is the power conferred on public functionaries to act officially according to the dictates of their own judgment.” (<i>AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health</i> (2011) 197 Cal.App.4th 693, 700.) “Generally, mandamus may be used only to compel the performance of a duty that is purely ministerial in character. [Citation.] The remedy may not be invoked to control an exercise of discretion, i.e., to compel an official to exercise discretion in a particular way.” (<i>Ridgecrest Charter School v. Sierra Sands Unified School Dist.</i> (2005) 130 Cal.App.4th 986, 1002.) “While a party may not invoke mandamus to force a public entity to exercise discretionary powers in any particular manner, if the entity refuses to act, mandate is available to compel the exercise of those discretionary powers in some way.” (<i>Ellena v.</i>
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		<i>Department of Ins.</i> (2014) 230 Cal.App.4th 198, 205 (<i>Ellena</i>.) Whether a statute imposes a ministerial duty is a question of statutory interpretation. (<i>AIDS Healthcare Foundation</i>, at p. 701.) (<i>HNHPC, Inc. v. Department of Cannabis Control</i>, 94 Cal.App.5th at 70.) “Mandamus may be used to correct an abuse of discretion. (<i>American Board of Cosmetic Surgery v. Medical Board of California</i> (2008) 162 Cal.App.4th 534, 547.) When reviewing an exercise of discretion, ‘the judicial inquiry ... addresses whether the public entity’s action was arbitrary, capricious or entirely without evidentiary support, and whether it failed to conform to procedures required by law.’ (<i>California Public Records Research, Inc. v. County of Stanislaus</i> (2016) 246 Cal.App.4th 1432, 1443.)” (<i>HNHPC, Inc. v. Department of Cannabis Control</i>, 94 Cal.App.5th at 71.) Petitioners alleged sufficient facts to state a cause of action for writ of mandate and that Burch’s activities were not encompassed in the definition of retired member activities. (Ed. Code, § 22164.5, subd. (b); TAP, ¶¶ 10, 12, 13, 17.1, 19, and 20.) Accordingly, the demurrer is overruled. <u>Second cause of action for breach of contract</u> “[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) Petitioners alleged the existence of a written contract between Quantum and District and Petitioners’ performance. (TAP, ¶ 22, Exhibit 1.) Petitioners did not allege sufficient facts to show District breached the written contract or that Quantum was a damaged as a result of the alleged breach. Petitioners attempt to allege Burch is a third-party beneficiary of the contract. (<i>Id.</i>, ¶ 22.) Petitioners allege District’s misreporting the payments made to Quantum to Burch’s personal tax identification and CalSTRS member number breached Burch’s beneficial interest in the contract. (<i>Id.</i>, ¶ 25.) The contract attached as Exhibit 1 does not include a term regarding reporting income to CalSTRS. Petitioners have not shown parole evidence applies. Petitioners have not alleged sufficient facts to show Burch is a third-party beneficiary. (<i>See, Jensen v. U-Haul Co. of California</i> (2017) 18 Cal.App.5th 295, 301; <i>Brinton v. Bankers Pension Services, Inc.</i> (1999) 76
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		Cal.App.4th 550, 558.) Accordingly, the demurrer is sustained with 15 days leave to amend.
8.	2023-1332366 Ivey vs. Ivey	
9.	2023-1333775 Karpan vs. S & W Loc, Inc.	The Court grants Shaun Joseph Bauman, Esq.’s Motion to be relieved as counsel for Plaintiff John Karpan. Counsel has used the required forms, all required information is supplied, and service is proper. (California Rules of Court, rule 3.1362.) Mr. Bauman is ordered to submit a new proposed order with all boxes filled out after the hearing for the Court’s signature. Mr. Bauman shall serve the signed Order on Plaintiff and Defense Counsel, and then file a proof of service showing the same. Mr. Bauman will be relieved as counsel upon filing a proof of service of a copy of the signed order on the client. Mr. Bauman shall serve notice of this Order.
10.	2023-1365896 Meyers vs. Tsaturyan	Defendants Aram Tsaturyan’s and Mkrtich Tsaturyan’s motion to strike the punitive damages claims from Plaintiffs’ First Amended Complaint (“FAC”) is granted with 15 days leave to amend. If Plaintiffs decide not to amend their Complaint, they shall notify Defendants and this Court within 15 days, and Defendants shall have 15 days thereafter to file an Answer. A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc. § 431.10(b).)